

IN THE SENATE

SENATE BILL NO. 1340, As Amended

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO RULES OF THE ROAD; AMENDING SECTION 49-630, IDAHO CODE, TO REQUIRE VEHICLES TO BE DRIVEN ON THE RIGHT-HAND LANE ON MULTILANE HIGHWAYS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 49-655, IDAHO CODE, TO PROVIDE A PENALTY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-630, Idaho Code, be, and the same is hereby amended to read as follows:

49-630. DRIVE ON RIGHT SIDE OF ROADWAY -- EXCEPTIONS. (1) Upon all highways of sufficient width a vehicle shall be driven upon the right half of the roadway except as follows:

(a) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;

(b) When an obstruction exists making it necessary to drive to the left of the center of the highway. Any person doing so shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the highway within a distance as to constitute an immediate hazard;

(c) Upon a highway divided into three (3) marked lanes for traffic under the applicable rules; or

(d) Upon a highway restricted to one-way traffic.

(2) (a) Upon all multilane highways, no vehicle shall be driven in the left-hand lane except when directed otherwise, preparing for a left turn at an intersection or private road or driveway, overtaking or passing another vehicle or vehicles proceeding in the same direction, or when right-hand lanes are obstructed by vehicles traveling at less than the normal speed of traffic. However, no vehicle being driven in the left lane except when directed otherwise or preparing for a left turn at an intersection, private road, or driveway shall impede any other vehicle that is traveling in the same lane and behind that vehicle.

(b) Upon all multilane highways, no vehicle traveling in the left-hand lane shall be driven at a speed slower than any vehicle traveling to its right on the same roadway.

~~(2) (c)~~ (c) Upon all multilane highways, any vehicle proceeding at less than normal speed of traffic at the time and place and under the conditions then existing, shall be driven in the right-hand lane available for traffic, or as close as practicable to the right-hand curb or edge of the highway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.

1 (3) No vehicle shall be driven to the left of the center line upon any
2 highway having four (4) or more lanes for moving traffic and providing for
3 two-way movement of traffic, except when authorized by a traffic-control de-
4 vice designating certain lanes to the left side of the center of the high-
5 way for use by traffic not otherwise permitted to use such lanes, or except
6 as permitted under subsection (1) (b) of this section. This subsection shall
7 not be construed as prohibiting the crossing of the centerline in making a
8 left turn into or from an alley, private road or driveway.

9 (4) A violation of subsection (2) of this section shall be an infraction
10 punishable by a fine of seventy-five dollars (\$75.00).

11 (5) The Idaho transportation department is directed to place signs on
12 multilane highways, in an effort to make motorists aware of the provisions of
13 this section.

14 SECTION 2. That Section 49-655, Idaho Code, be, and the same is hereby
15 amended to read as follows:

16 49-655. MINIMUM SPEED REGULATION. (1) No person shall drive a motor
17 vehicle at such a slow speed as to impede the normal and reasonable movement
18 of traffic except when reduced speed is necessary for safe operation or in
19 compliance with the law.

20 (2) Notwithstanding any minimum speed that may be authorized and posted
21 pursuant to this section, no person shall operate a vehicle in the extreme
22 left-hand lane of a controlled-access highway for a period of time that im-
23 pedes the flow of other traffic traveling at a lawful rate of speed. A vio-
24 lation of this subsection shall be an infraction punishable by a fine of sev-
25 enty-five dollars (\$75.00).

26 SECTION 3. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.